

Athens, 16-02-2024
No. Protocol: 587
DECISION 7/2024
(Department)

The Hellenic Data Protection Authority convened, at the invitation of its President, in a regular meeting in the composition of a Department at its headquarters on 10/01/2024, in order to examine the case referred to in the history of this document. Participating in the meeting via teleconference was Georgios Batjalezis, Deputy President, due to the absence of the President of the Authority, Konstantinos Menoudakos, and present were the alternate member Georgios Kontis, as rapporteur, as well as the alternate members Dimosthenis Bougioukas and Maria Psalla, replacing the regular members Konstantinos Lamprinoudakis and Grigorios Tsolias who were absent due to conflict despite being duly summoned in writing. Also present at the meeting, by order of the President without voting rights, were Georgia Panagopoulou, special scientist – auditor as assistant rapporteur, and Irini Papageorgopoulou, employee of the administrative affairs department of the Authority, as secretary.

The Authority took into account the following:

With the document No. G/IN/8815/08-11-2018, as supplemented by the document No. G/IN/7048/16-05-2022, A (hereinafter the complainant) is filing a complaint against the company "X" (hereinafter the complained party) regarding the illegal operation of a geolocation system in a vehicle that had been assigned to him by his employer. According to the complaint, data from the system were used by the complained party to prove that the employee used the vehicle outside working hours, in violation of the terms of assignment, and that he had not been duly informed about the processing of his personal data through this system.

The Authority sent the complained party the document No. G/EXE/1163/18-05-2022, in which it informed them of the content of the submitted complaint and invited them to submit their written views regarding the complaint, with special reference to the issues of employee notification and the operation of the system outside working hours.

The complained party responded with the document No. G/IN/7664/02-06-2022, in which it states that the purpose and sole objective was primarily the safety and protection of the health and physical integrity of the aforementioned employee, the precise monitoring and general safety of the corporate vehicle as well as the company's cargo, the verification of routes, and the faithful and uninterrupted adherence to the program that has been predetermined by the supervisor, as well as the rationalization of expenses with the most appropriate planning of routes, since the complainant, in the context of his work obligations, moved outside his place of residence in Athens. It was additionally proposed to him, in case of any reservations regarding any related issue: 1) either to pick up the vehicle as a company car at 09:00 and return it after the end of his work around 17:00 to the offices at ..., 2) or to continue providing his services with an older vehicle, 3) or to continue providing his services with his own private vehicle, which would be integrated into the company for his service under a fixed remuneration scheme. The complainant, after being orally informed about the operation of the system, freely and willingly considered the above options presented to him, and not only did he not oppose the installation of the geolocation device, but on the contrary, with full awareness, he consented, and it was ultimately agreed that the specific new vehicle would be delivered, and for this reason, the delivery protocol of the vehicle dated 05/03/2015 was signed, which explicitly states that the specific vehicle was equipped with a "detection device." For technical reasons, the contractor executing the processing of the geolocation monitoring, as had the principles set out in paragraph 1» (Article 5(2) GDPR).

3. In light of the above, the Authority must assess whether the processing of personal data by the respondent complies with the principles of lawfulness, fairness, and transparency, as well as the security measures required to protect personal data from unauthorized access and processing.

4. The Authority notes that the complainant has raised concerns regarding the selective interruption of the system's operation and the accessibility of the data. The respondent has provided assurances that

the system cannot be selectively interrupted and that the complainant will have uninterrupted access to the data upon request.

5. The Authority has reviewed the decision of the Single-Member Court of First Instance of X (...), which examined the complainant's lawsuit and found no illegality concerning the operation of the geolocation system.

6. The Authority, having considered the evidence in the file and having heard the rapporteur and the clarifications from the assistant rapporteur, who attended without voting rights, after thorough discussion,

CONSIDERED IN ACCORDANCE WITH THE LAW

7. The provisions of Articles 51 and 55 of the General Data Protection Regulation (Regulation (EU) 2016/679 – hereinafter, GDPR) and Article 9 of Law 4624/2019 (Government Gazette A' 137) indicate that the Authority has the competence to supervise the application of the provisions of the GDPR, this law, and other regulations concerning the protection of individuals from the processing of personal data. Specifically, from the provisions of Articles 57(1)(f) of the GDPR and 13(1)(g) of Law 4624/2019, it follows that the Authority is competent to address the complaint of the complainant against the respondent and to exercise the powers conferred upon it by the provisions of Articles 58 of the GDPR and 15 of Law 4624/2019.

8. Article 5(1) of the General Regulation (EU) 2016/679 on the protection of natural persons with regard to the processing of personal data (hereinafter GDPR) sets out the principles that must govern any processing. According to Article 5(1)(a) and (f) GDPR, "1. Personal data shall be: (a) processed lawfully, fairly, and in a transparent manner in relation to the data subject ('lawfulness, fairness, and transparency'), [...] (f) processed in a manner that ensures appropriate security of personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, using appropriate technical or organizational measures ('integrity and confidentiality')." As noted in the Recitals of the Regulation, "Personal data should be processed in a manner that ensures appropriate security and confidentiality of personal data, including protection against unauthorized access to such personal data and to the equipment used for processing them or the use of such personal data and that equipment" (Recital 39 in fine). Furthermore, according to the principle of accountability explicitly stated in the second paragraph of the same article and which constitutes a cornerstone of the GDPR, the data controller "is responsible for, and must be able to demonstrate compliance with, the principles set out in paragraph 1" (Article 5(2) GDPR).

1. The principle of accountability ("accountability") implies the obligation of the data controller to be able to demonstrate compliance with the principles of Article 5(1).

2. According to the provision of Article 4(7) of the GDPR, the data controller is defined as "the natural or legal person, public authority, agency, or other body which, alone or jointly with others, determines the purposes and means of the processing of personal data; where the purposes and means of such processing are determined by Union law or the law of a Member State, the controller or the specific criteria for its designation may be provided for by Union law or the law of a Member State." According to the Guidelines 07/2020 of the EDPB regarding the concepts, any processing of personal data carried out by employees in the context of an organization's activities may be considered to be carried out under the control of that organization. Employees who have access to personal data within an organization are generally not considered "data controllers" or "processors," but rather "persons acting under the authority of the data controller or the processor" within the meaning of Article 29 of the GDPR; therefore, in this case, the complainant is the data controller.

3. Regarding the transparency of processing, Article 12(1) of the GDPR states: "The controller shall take appropriate measures to provide the data subject with all information referred to in Articles 13 and 14 and any communication in the context of Articles 15 to 22 and Article 34 regarding processing in a concise, transparent, intelligible, and easily accessible form, using clear and plain language, particularly when addressing a child. The information shall be provided in writing or by other means, including, where appropriate, electronically. When requested by the data subject, the information may

be provided orally, provided that the identity of the data subject is proven by other means." The information that must be provided is stipulated in Article 13 of the GDPR for cases where data is collected from the data subject and in Article 14 of the GDPR for cases where the data has not been collected from the data subject. Specifically, this information includes at least "a) the identity and contact details of the data controller and, where applicable, of the representative of the controller, b) the contact details of the data protection officer, where applicable, c) the purposes of the processing for which the personal data are intended, as well as the legal basis for the processing, d) the relevant categories of personal data, e) the recipients or categories of recipients of the personal data, f) where applicable, that the controller intends to transfer personal data to a recipient in a third country or an international organization and the relevant information, g) the period for which the data will be stored, or, if that is not possible, the criteria used to determine that period, h) information regarding the rights of the data subject under Articles 15-22 of the GDPR." If the data has not been collected from the data subject, according to Article 14(2)(f) of the GDPR, the information to be provided to the data subject includes "the source from which the personal data originate and, where applicable, whether the data originated from publicly accessible sources." The information is provided either at the time of data collection when it is collected from the data subject (Article 13 of the GDPR) or within the time period specified in paragraph 3 of Article 14 of the GDPR, in cases where the data has not been collected from the data subject.

4. In Opinion 2/2017 of the Article 29 Working Party regarding data processing in the workplace, paragraph 5.7 states that due to the sensitive nature of location data, it is unlikely that there is a legal basis for monitoring the location of employees' vehicles outside of the context of employment relationships.

****AGREED WORKING HOURS.**** However, if such a need arises, the use must be proportional to the risks. For example, this could mean that, for the prevention of vehicle theft, the location of the vehicle is not recorded outside of working hours, unless the vehicle leaves a broader location (region or even country). Furthermore, the location will only be displayed in emergency situations – the employer activates the visibility of the location by accessing data that has already been stored by the system when the vehicle exits a predetermined area.

6. The respondent, as the data controller for the location data of the employee's vehicle, must be able to demonstrate compliance with the principles of Article 5(1) of the GDPR, maintaining the appropriate documentation as required. The Authority did not conduct an audit of this documentation but examined the contents of the complaint concerning the specific incident.

7. In the Authority's Annual Report of 2014, in section 3.8.2 regarding the use of geolocation systems in employees' vehicles, it is stated that the employer must inform employees about the purpose of processing, the type of recorded data, the duration of their retention, and the procedure for the employee to exercise their right of access. The notification must be individual and certified in a reasonable manner. The reporting of location data collected outside working hours from the vehicle, which the complainant should not have used, pertains to a period before the GDPR came into effect, thus the obligation to inform should have been satisfied in a relevant and appropriate manner by then under the applicable Law 2472/1997, Article 11.

8. From the above-stated factual circumstances, it appears that the respondent recorded the geolocation data of the vehicle that had been allocated to the complainant even outside working hours, having only allocated the vehicle for use within working hours and having informed the complainant about the existence and operation of this system. The detailed notification was made orally following a relevant request from the complainant, resulting in its certification not being straightforward.

****FOR THESE REASONS****

THE AUTHORITY

A. Imposes on "X" as the data controller a warning based on Article 21 of Law 2472/1997 for the adjustment of the notification regarding the operation of the geolocation system in vehicles so that it is individual, complete, and clear, and is certified in a reasonable manner.

B. Orders "X" as the data controller, based on Article 58(2)(c) of the GDPR, to adjust the notification

regarding the operation of the geolocation system in vehicles so that it is individual, complete, and clear, and is certified in a reasonable manner.

****The President****

****The Secretary****

Georgios Batzalexis

Irini Papageorgopoulou